

Court No. - 22

Case :- WRIT - C No. - 27923 of 2006

Petitioner :- Deepak Tripathi

Respondent :- Kanpur Electricity Supply Co. Ltd. Kesco House Thru M.D.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- R. Saxena, Mridula Tripathi, SC

Hon'ble Shamim Ahmed, J.

Heard learned counsel for the petitioner and learned Standing Counsel as well as learned counsel for the Electricity Department.

Learned counsel for the petitioner submits that the sole dispute in this case is regarding the wrong bill sent by the respondent Electricity Department and prays that he may be permitted to approach the Executive Engineer who is the Competent Authority under clause 6.5 of the U.P. Electricity Supply Code, 2005 to decide the dispute of the petitioner.

Learned counsels for the respondents have no objection.

Accordingly, this writ petition is **disposed** of with the direction that, in case, petitioner files a fresh representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 setting out his claim before the Executive Engineer, the Executive Engineer will consider the claim of the petitioner and pass an appropriate order in accordance with law as far as possible within a period of four weeks from the date of presentation of a certified copy of this order along with representation.

Order Date :- 6.3.2020

SFH